NDIS Quality and Safeguards Commission

Our ref: 4-HOJ09AX

Ms Vida Reid
C/O Tom & Co Legal Pty Ltd
PO Box 25567
Perth WA 6000

By email to: info@tomandcolegal.com.au; vida@ffg.net.au; feedback@ffg.net.au

Dear Ms Reid,

Notice of Banning Order under section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* with immediate effect.

I enclose a banning order made under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act). I have made the order on the basis that I reasonably believe that you have contravened, are contravening, or are likely to contravene the NDIS Act, in accordance with section 73ZN(2)(a)(i) of the NDIS Act.

This banning order prohibits you from being involved in the provision of supports or services to people with disability for a period of five (5) years.

This banning order will not apply in relation to any supports or services that you may seek for yourself or that you may provide to your son.

You should refer to the enclosed document, which clearly set out the banning order and reasons for my decision to make such an order.

Please note that the banning order takes effect on **Tuesday 20 December 2022 at 5:30pm (AWST)**.

Review under section 100 of the NDIS Act

You may request a review of my decision to make a banning order. You may do so within three months from the date the order is served on you.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on 1800 035 544 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

In addition to applying for a review of this decision under section 100 as outlined above, you may apply for a variation or revocation of the banning order under section 73ZO of the NDIS Act.

Any decision made pursuant to an application under section 73ZO is itself a reviewable decision under section 100. The application must be in writing and explain why you believe the banning order should be revoked or varied. If you are requesting a variation, you should also provide details of the type of variation requested.

Non-compliance with the banning order

Please note that engaging in conduct that breaches the banning order that has been made against you is a contravention of section 73ZN(10) of the NDIS Act, for which there is a civil penalty of up to $222,000 for an individual.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which includes certain information about NDIS providers and other persons. Relevant information about the banning order will be included on the NDIS Provider Register and published on the NDIS Commission's website.

Yours sincerely

Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

Enc: Attachment A – Banning Order
Attachment B – Statement of Reasons

ATTACHMENT A

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER

I, Philip Halton, give this Banning Order to Vida Reid as I reasonably believe that, the person has contravened, is contravening, or is likely to contravene this Act. (NDIS Act s73ZN(2)(a)(i)).

Pursuant to section 73ZN(2)(a)(i) of the NDIS Act, I prohibit Vida Reid from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of **five (5) years** from the date that this order takes effect.

However, does banning order will not apply in relation to any supports or services that Vida Reid may seek for herself or that she may provide to her son.

My reasons for making this order are set out in the enclosed statement of reasons.

This order takes effect on **Tuesday 20 December 2022 at 5:30pm (AWST)**.

Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (Cth)

SECTION 73ZN

BANNING ORDER: STATEMENT OF REASONS

This is a statement of reasons for the making of a banning order on 20 December 2022 against Ms Vida Reid, under section 73ZN of the National Disability Insurance Scheme Act 2013 (NDIS Act).

Reasons for my decision

1. At the relevant time Ms Reid was a Director, and key personnel of Forward Focused Group Pty Ltd (Forward Focused Group), Registration 4-4GHG-1073.

2. Ms Reid was a Director of Forward Focused Group until November 2022.

3. The Commission holds information that Ms Reid has contravened, is contravening, or is likely to contravene the NDIS Act.

4. On 19 October 2022, I issued you with a letter to inform you of the relevant facts and matters I have considered in reaching my preliminary view that it may be appropriate in all circumstances to make a Banning Order prohibiting you for a period of ten (10) years from being involved in the provision of supports or services to people with disability.

5. I also gave you the opportunity to make a submission before I made my final decision.

6. Submissions were due no later than 5.00pm (AWST) on 16 November 2022.

7. I received a request for an extension to that timeframe and granted additional time for submissions through to 30 November 2022 (the extended submission date).

8. I acknowledge the submission sent by Mr Tom Monks, Principal Director, Tom & Co Legal Pty Ltd to the Commission on 30 November 2022. The Commission has carefully considered the contents of the submission to determine whether to make a Banning Order against you.

9. I note that you are no longer the Director of Forward Focused Group. With the exception of this fact, all other relevant facts and information held by the Commission in forming the preliminary view to make a Banning Order against you have not changed.

10. According to information available to the Commission, you as Director of Forward Focused Group, assigned yourself with authority to make decisions on behalf of NDIS participants. This information suggests that you were not taking all reasonable steps to prevent and respond to all forms of exploitation of people with disability. By way of example,
    a) The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

11. The Commission has received information and allegations that strongly suggest that you as Director of Forward Focused Group frequently engaged in bullying, harassment and intimidation behaviours directed at NDIS participants and Forward Focused Group staff. Your alleged conduct towards participants and staff has created an environment whereby participants and staff did not feel supported or safe to raise any concerns they have about the quality and safety of supports provided by Forward Focused Group.

12. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission holds information that suggests that you, as a representative of the Provider, did not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from you. This information strongly indicates that you, in your capacity as Director and key personnel, did not ensure that complaints were welcomed, acknowledged, respected and well-managed.

13. The Commission also holds information that you as Director of Forward Focused Group were not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with Forward Focused Group. Your email correspondence indicated non-compliance with the *National Disability Insurance Scheme (Code of Conduct) Rules 2018* and included both veiled and direct threats, bullying and harassment. By way of example,
    a) Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager, you wrote "we will be terminating your services with us effective immediately".
    b) Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.
    c) On 1 July 2022, you responded to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."
    d) Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, you purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.
    e) Email 16 June 2022 sent by you to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."
    f) Email 16 June 2022 sent by you to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

14. The Commission holds additional information that indicates that you played a central role in the alleged fraudulent activities engaged in by Forward Focused Group, in particular the submission of false claims for payments to the National Disability Insurance Scheme (Scheme). I am of the view that this demonstrates a failure by you to act with integrity, honesty and transparency.

15. It is alleged that Forward Focused Group were knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

16. The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

17. The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that you were withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,
    a) Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided. In your response dated 9 May 2022, you replied "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity … I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures."

18. The Commission holds records of correspondence between you and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for you to immediately terminate engagements with participants. By way of example,

    a) Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

19. The information available to the Commission indicates that you engage in dishonest and intimidating conduct that falls below the standard expected from key personnel of a registered NDIS provider and the director of a company that provides disability supports and services.

Submissions

20. The Commission received a submission on 30 November 2022 (the extended submission date).

21. Your submission notes that a request for further time and further information were not responded to however, the Commission did respond to this request. This is evidenced by the Commission's acceptance of the submission on 30 November 2022 (the extended submission date).

22. Your submission responds to a number of facts and information we raised in the notice of intention to the provider dated 19 October 2022.

23. Your submission confirms that you held relevant information in relation to the issues identified.

24. Your submission denies all allegations.

25. I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.

26. Having weighed all the evidence at hand I have formed the reasonable belief that you have contravened, are contravening, or are likely to contravene the NDIS Act, as per section 73ZN(2)(a)(i) of the NDIS Act.

27. As part of my considerations I am obliged to consider the NDIS Act. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:

    a. Supporting the independence and social and economic participation of people with disability.

    b. Enabling people with disability to exercise choice and control in the pursuit of their goals and the panning and delivery of their supports.

    c. Protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the National Disability Insurance Scheme.

28. In giving effect to the objects of the NDIS Act, including those outlined above, section 3(3)(b) requires regard to be had to the need to ensure financial sustainability of the National Disability Insurance Scheme (NDIS). Similarly, as set out in NDIS Act section 4(17) it is the intention of the Parliament that the Commissioner, amongst others, have regard to the need to ensure financial sustainability of the NDIS in performing functions and exercising powers under the NDIS Act.

29. The need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs your interest in continuing to be involved in the provision of supports or services to people with a disability.

30. In determining whether to make a Banning Order for you, I weighed the following competing interests and concerns:
    a. The nature of your alleged breaches of the NDIS Act are serious, as they involve instances of verbal and emotional abuse involving threats towards vulnerable persons with disability to whom you were providing services and supports on a regular basis. The Commission holds information that suggested that you exerted undue influence over a number of participants that limited them from exercising their choice and control over their own supports and services.
    b. The Commission holds information that suggests that you have been using your position to exploit participants who are in vulnerable situations despite your knowledge of your obligations under the NDIS Act. For these reasons, I am concerned your breaches will continue to occur in future.

31. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from key personnel of NDIS providers when providing supports or services to people with disability. The information before me in relation to the protracted length of time over which the alleged conduct took place suggests that your conduct was systemic in nature. Allowing you to continue providing supports or services to people with disability poses a continuing risk to people with disability.

32. I am of the view that making a Banning Order against you would provide a strong level of protection for people with disability and maintain community confidence in the Scheme.

33. For the avoidance of doubt, the Banning Order will prevent you from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS-funded supports and services to people with disability.

34. The ban will therefore preclude you from having any involvement in any other entity that provides supports and services to NDIS participants.

35. I accept that the making of a banning order for you will impact your ability to earn an income in the disability services sector, and I have taken this into account in my consideration to issue the banning order.

36. I consider your alleged conduct is entirely relevant to my assessment of your suitability to be involved in the provision of supports or services to NDIS participants, in considering the objects and principles of the NDIS Act. This is particularly the case as the parties impacted by your actions are NDIS participants.

37. I consider that a timeframe of five (5) years is appropriate and will provide a strong level of protection for people with disability.



Philip Halton
Branch Head, Operations - North Central West
Delegate of the NDIS Quality and Safeguards Commissioner

20 December 2022